

Research Briefing

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Flexible working



Summary

- 1 Patterns in flexible working
- 2 The legal framework
- 3 Policy background and discussion

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Contents

Summary	4
1 Patterns in flexible working	6
1.1 Use of different types of flexible working arrangements	7
1.2 Home working	9
2 The legal framework	11
2.1 The right	11
2.2 Employer's duties in relation to an application	12
2.3 Remedies	13
3 Policy background and discussion	15
3.1 Labour Government policy: 1997-2010	15
3.2 Coalition Government policy, 2010-15	17
3.3 Policy and discussion under the Conservative Government, 2015-2024	20

Summary

The right

The statutory right to request flexible working entitles qualifying employees to apply to their employers for a change to their terms and conditions of employment relating to their hours, times or location of work. The change could include, for example, working part-time, from home or compressed hours. Employers may only refuse the request on grounds defined in legislation, for example, the burden of additional costs or a detrimental effect on the ability to meet customer demand.

The right to request flexible working was introduced by [section 47 of the Employment Act 2002](#) for employees with parental or caring responsibilities. Since then, successive governments have extended the right to wider categories of employees. On 30 June 2014 the right was extended to all employees with 26 weeks' continuous employment by the [Children and Families Act 2014](#).

In April 2024, new legislation expanded rights for employees around flexible working, paid and unpaid leave, and protection from redundancy during parental leave.

These changes mean employees can now make two, rather than one, requests per year for flexible working arrangements. The deadline for employers to respond to such requests has also been reduced from three to two months. The changes also mean employers have to provide reasons for denying any request, and employees no longer have to explain the impact of their request.

This briefing provides an overview of the right to request flexible working. It explains the legal framework, charts the development of the right since its introduction and discusses government policy.

What is flexible working?

Flexible working is seen as a means of enabling employees to balance their personal and working lives, benefiting employers in terms of workforce recruitment, motivation and retention.

Examples of flexible working arrangements include part-time working, compressed hours, and flexitime.

Attitudes towards flexible working

Surveys have shown that many employees want flexible working arrangements. A [survey in 2017 by Timewise](#) (a flexible working consultancy) found that 84% of male full-time employees and 91% of female full-time employees were either already working flexibly, or said they wanted to do so.

A [survey of UK businesses by HSBC in 2021](#) also reported that flexible working and salary were equally important when attracting and retaining staff, with 35% of businesses stating this as important.

According to a [survey by the Chartered Institute of Personnel and Development](#) (CIPD), the most common type of flexible working is working from home on a regular basis. The [ONS reported in June 2021](#) that 24% of businesses intended to use homeworking as a permanent business model going forward. Almost 80% of businesses said this was because of improved staff wellbeing.

1

Patterns in flexible working

Around 2.6 million employees had been with the same employer for less than 26 weeks (roughly 9.5% of all employees) in January to December 2022.¹ This represents the number of people estimated to come into scope of legislative changes making the right to request flexible working a day one right, instead of after 26 weeks of continuous employment.

Surveys have shown that many employees want flexible working arrangements. A survey in 2017 by Timewise (a flexible working consultancy) found that 84% of male full-time employees and 91% of female full-time employees were either already working flexibly, or said they wanted to do so.²

The ONS found that among those aged 50 to 65 years who had left or lost their job since the pandemic, flexible working was a big consideration in deciding whether to return to work. Of those who said they would consider returning to work, over half said the most important factor when choosing a new job were flexible working arrangements. Being able to work flexible working hours was most commonly given as the most important factor (32%), followed by good pay (23%), and being able to work from home (12%).³

A survey of UK businesses by HSBC in 2021 reported that flexible working and salary were equally important when attracting and retaining staff, with 35% of businesses stating this as important.⁴

According to a survey by the CIPD, the most common type of flexible working is working from home on a regular basis. There are gaps between the types of flexible working that people would use if it were possible and offered in their role, and the types of flexible working people actually use.⁵

The rates of people working from home increased during the pandemic and have remained higher after the pandemic, from around 4% in 2015 to around 21% in 2023.⁶

¹ Department for Business and Trade, [Flexible Working \(Amendment\) Regulations 2023 Impact Assessment](#), p10

² Timewise, [Flexible working: a talent imperative, 19 September 2017](#), p3

³ ONS, [Reasons for workers aged over 50 years leaving employment since the start of the coronavirus pandemic: wave 2](#), 27 September 2022

⁴ HSBC, [Flexible working as important as salary say UK businesses](#), 5 October 2021

⁵ CIPD, [Flexible and hybrid working practices in 2023](#), May 2023

Figures for 2015- 2020: ONS, [Homeworking in the UK labour market](#), 17 May 2021; Figures for 2021-2023: House of Commons Library analysis of Annual Population Survey data

1.1

Use of different types of flexible working arrangements

The following chart shows different types of flexible working practices that people currently use. It is based on a survey carried out by the CIPD in 2023 of 2,005 employees. The chart compares what employees said they would use if it was possible and offered in their role, and what they actually use.

The most common types of flexible working arrangements in use by respondents to the survey are working from home on a regular basis (37%), informal flexibility⁷ (31%) and always working from home (17%).

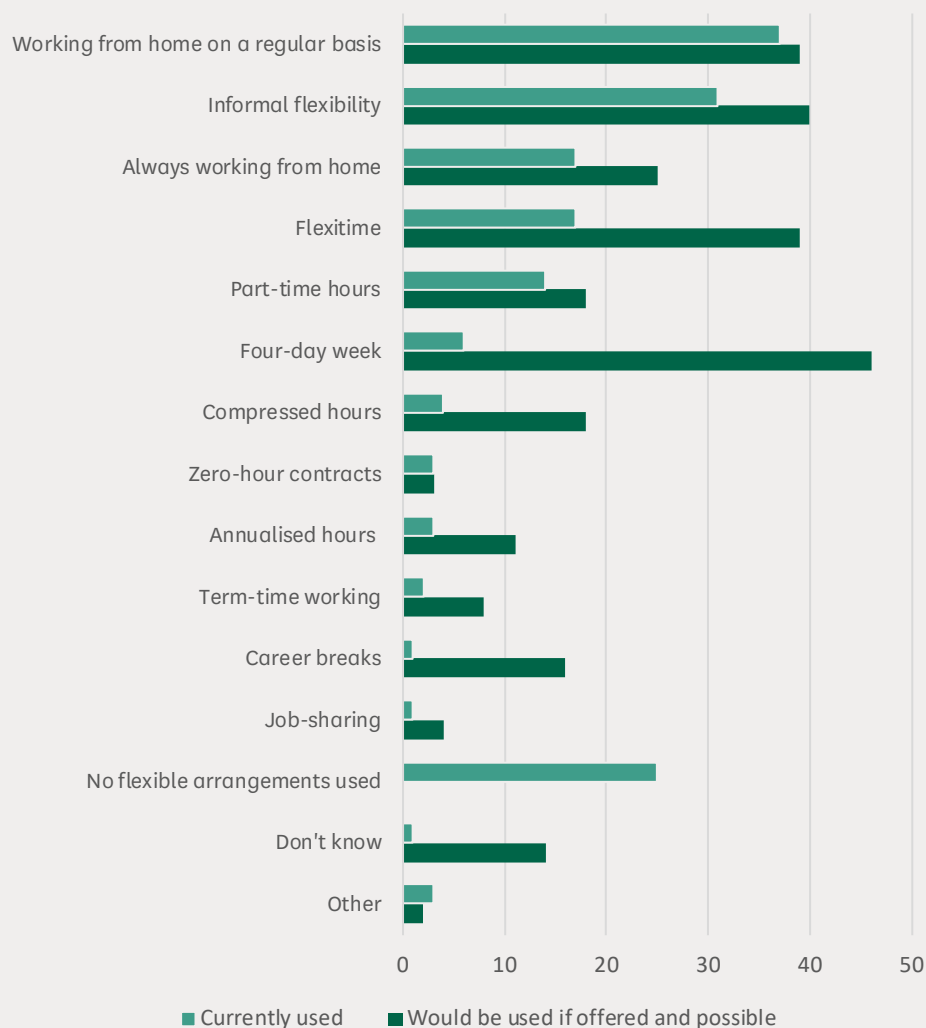
Some types of flexible working have sizeable gaps between the percentage of people who reported currently using them, and the percentage of people who would use that type of flexibility if offered and possible:

- Four day weeks: 46% of survey respondents would use this if possible; 6% of survey respondents currently use it
- Flexitime: 39% of survey respondents would use this if possible; 17% of survey respondents currently use it
- Career breaks: 16% of survey respondents would use this if possible; 1% of survey respondents currently use it
- Compressed hours: 18% of survey respondents would use this if possible; 4% of survey respondents currently use it

⁷ Informal flexibility means the ability to change hours or location on an as-needed basis, informally agreed with line manager

Use of flexible working arrangements (%), 2023

Ordered by current use



Notes

Informal flexibility means the ability to change hours or location on an as-needed basis, informally agreed with line manager

Figures are taken from a YouGov survey undertaken by the Chartered Institute for Personnel Development between 1-22 February 2023.

Total sample size was 2,005 employees

Source: CIPD, [Flexible and hybrid working practices in 2023](#), May 2023

1.2

Home working

There was a large increase in the proportion of employed people who were working from home between 2019 and 2022 as shown in the table below. This is based on survey data from the Annual Population Survey. People are asked where they mostly worked during the survey reference week. This shows that between 2015 to 2023, the proportion of employed people who mostly worked from their own home increased from around 4% in 2015 to around 21% in 2023.

Places of work for employed people in the UK, 2015-2023 (%)

	Own Home	Same grounds or building	Different places with home as base	Separate from home
2015	4.3	1.0	8.7	85.6
2016	4.6	1.0	8.4	85.7
2017	4.6	1.0	8.1	85.9
2018	4.9	1.0	8.1	85.8
2019	5.1	0.9	8.2	85.5
2020	8.5	0.8	8.0	82.4
2021	14.6	0.9	7.0	77.3
2022	21.6	0.9	7.8	69.3
2023	21.2	0.9	8.1	69.5

Notes

Figures are for January to December

A homeworker is someone who worked mostly from home during the survey reference week.

Figures do not add up to 100% due to the inclusion of the responses "does not apply" or "no answer" in the denominator. This is how the ONS calculates their figures.

Rates are based on the number of people aged 16 or over in employment.

Source: Figures for 2015- 2020: ONS, [Homeworking in the UK labour market](#), 17 May 2021

Figures for 2021-2023: House of Commons Library analysis of Annual Population Survey data

Before the pandemic, the rate of people mainly working from home remained fairly steady at between 4% to 5%. During the pandemic in 2020 and 2021, in which people were encouraged to work from home where possible, this

increased to over 8% in 2020 and nearly 15% in 2021.⁸ This continued to increase after the pandemic, and in 2023 around 21% of people mainly worked from home.

The ONS reported in June 2021 that 24% of businesses intended to use homeworking as a permanent business model going forward. Almost 80% of businesses said this was because of improved staff wellbeing.⁹

⁸ ONS, [Business and individual attitudes towards the future of homeworking. UK: April to May 2021](#), 14 June 2021

⁹ ONS, [Business and individual attitudes towards the future of homeworking. UK: April to May 2021](#), 14 June 2021

Data is from the Business Insights and Conditions Survey, between 19 April to 2 May 2021

2 The legal framework

2.1 The right

The right to request flexible working is set out in Part 8A and section 47E of the Employment Rights Act 1996, as amended, and associated regulations.¹⁰

From the first day of their employment, an employee may apply to their employer requesting a change in hours, times or location of work as between their home and employer's place of business.¹¹ The application must:

- be in writing;
- state that it is a flexible working application;
- specify the change applied for and the date on which it is proposed the change should become effective;
- state whether the employee has previously made an application to the employer and if so when;
- be dated.¹²

Under section 1 of the Employment Relations (Flexible Working) Act 2023, employees are allowed to make two flexible working requests in a 12-month period.¹³

The GOV.UK website provides some examples of flexible working arrangements:

- Part time: Working less than full-time hours (usually by working fewer days).
- Compressed hours: Working full-time hours but over fewer days - for example a 9-day fortnight (an employee has a day off every other week and works longer hours on the other days)

¹⁰ [Employment Rights Act 1996](#), pt 8a, s 47E; See The Flexible Working Regulations 2014 ([SI 2014/1398](#)), [Employment Relations \(Flexible Working\) Act 2023](#), [The Flexible Working \(Amendment\) Regulations 2023](#)

¹¹ [Employment Rights Act 1996](#), s 80F, ss 1; The Flexible Working Regulations 2014 ([SI 2014/1398](#)), reg 3

¹² [Employment Rights Act 1996](#), s 80F, ss 2; The Flexible Working Regulations 2014 ([SI 2014/1398](#)), reg 4

¹³ [Employment Relations \(Flexible Working\) Act 2023](#), s 1

- Flexitime: The employee chooses when to start and end work (within agreed limits) but works certain ‘core hours’, for example 10am to 4pm every day.
- Annualised hours: The employee has to work a certain number of hours over the year but has some flexibility regarding when they work.
- Staggered hours: The employee has different start, finish and break times from other workers.
- Phased retirement: Older workers can choose when they want to retire and can reduce their hours and work part time.¹⁴

Acas Code of Practice

The right to request flexible working is supported by a statutory [Code of Practice](#) produced by the Advisory, Conciliation and Arbitration Service (Acas).¹⁵ The code sets out how employees can make statutory requests for flexible working.

Acas publishes [guidance on the right to flexible working](#) as well as a [guide for employers and employees on working from home and hybrid working](#).¹⁶

2.2

Employer’s duties in relation to an application

The employer must respond to a request “in a reasonable manner” and within two months or such longer period as agreed by the employer and employee.¹⁷ What is “reasonable” depends on the particular circumstances and is not defined in the legislation.

The Acas [Code of Practice](#) suggests that a ‘reasonable manner’ should include carefully assessing the effect of the requested change for both the employer and employee, including the potential benefits or impacts of accepting or rejecting the request.¹⁸

Should the employer refuse to grant the request it has discretion as to whether to allow an appeal; if it does, the same time limits apply.¹⁹ The

¹⁴ GOV.UK, [Flexible Working](#), (accessed 4 September 2024)

¹⁵ Acas consulted on the Code between 12 July and 6 September 2023. The consultation and responses are available on the Acas website: Acas, [Acas response to consultation on draft Code of Practice on handling requests for flexible working](#), 6 April 2024

¹⁶ Acas, [Flexible working](#), April 2024; Acas, [Working from home and hybrid working](#), April 2024

¹⁷ [Employment Rights Act 1996](#), s 80G, ss1 & s 80G, ss 1B. Previously, employers had 3 months to respond to a request. This was amended by the [Employment Relations \(Flexible Working\) Act 2023](#), s 1, ss 6

¹⁸ [As above](#)

¹⁹ [Employment Rights Act 1996](#), s 80G, ss 1A

employer may only refuse the application because they consider that one or more of the following grounds applies:

- the burden of additional costs;
- detrimental effect on ability to meet customer demand;
- inability to re-organise work among existing staff;
- inability to recruit additional staff;
- detrimental impact on quality;
- detrimental impact on performance;
- insufficiency of work during the periods the employee proposes to work;
or
- planned structural changes
- such other grounds as the Secretary of State may specify by regulations.²⁰

The employer may treat the employee's application as withdrawn if the employee, without good reason, fails to attend both the first meeting arranged by the employer to discuss the application and the next meeting arranged for that purpose.²¹

2.3

Remedies

If the employer fails to comply with these obligations, makes their decision based on incorrect facts or treats the employee's application as withdrawn in circumstances that do not satisfy the statutory conditions, the employee may present a complaint to an employment tribunal.

The tribunal may make an order for reconsideration of the application and award compensation of such amount it considers just and equitable, not exceeding eight weeks' pay. A weeks' pay is subject to the statutory maximum set annually by regulations. The most recently prescribed limits are:

²⁰ [Employment Rights Act 1996](#), s 80G, ss1, para b

²¹ [Employment Rights Act 1996](#), s 80G, ss 1D

Maximum limits of one week's pay for compensation awards

Date	Maximum (£)
6 April 2024 – 5 April 2025	700
6 April 2023 – 5 April 2024	643
6 April 2022 – 5 April 2023	571

Source: Source: The Employment Rights (Increase of Limits) Order 2024 ([SI 2024/213](#)), The Employment Rights (Increase of Limits) Order 2023 ([SI 2023/318](#))

3

Policy background and discussion

3.1

Labour Government policy: 1997-2010

The right to request flexible working was introduced by section 47 of the Employment Act 2002, following a report by the Work and Parents Taskforce.²² Section 27 came into effect on 6 April 2003 at the same time as the associated regulations.²³ The legislation initially gave the right to parents of children under six or disabled children under 18.²⁴

Consultation to extend the right to flexible working, 2004-5

In April 2004, the government announced plans to extend the provisions for flexible working to carers of adult dependants. The consultation on the proposal ran from February to May 2005, with the government's response published in October 2005.²⁵

The response confirmed the government's intention to extend the right to carers.²⁶ Although the consultation also explored the possibility of extending the right to parents of older children, the government decided against extending the right as there was not a "sufficient case for extending the law to other parents at [that] time".²⁷

The [Work and Families Act 2006](#) and [Flexible Working \(Eligibility, Complaints and Remedies\) \(Amendment\) Regulations 2006](#) were introduced to allow

²² [Employment Act 2002](#), s 47; Section 47 inserted [Part 8A of the Employment Rights Act 1996](#); Eurofound, [Parents to have legal right to request flexible working](#), 5 December 2001; Department for Trade and Industry, [Government Response to the Recommendations from the Work and Parents Taskforce](#), November 2001 (accessed 13 June 2024)

²³ [The Flexible Working \(Eligibility, Complaints and Remedies\) Regulations 2002](#) SI 2002/3236; [The Flexible Working \(Procedural Requirements\) Regulations 2002](#) SI 2002/3207.

²⁴ This includes the: mother, father, adopter, guardian or foster parent of the child or; someone married to or the partner of the child's mother, father, adopter, guardian or foster parent. On 1 October 2007, the Labour Government made some minor technical amendments to the flexible working regulations, which expanded the definitions of "adopter" and "relative" through the *Flexible Working (Eligibility, Complaints and Remedies) (Amendment) (No. 2) Regulations 2007*, SI 2007/2286

²⁵ DTI, [Work and Families Consultation: Government Response](#), October 2005

²⁶ DTI, [Work and Families Consultation: Government Response](#), October 2005, p5

²⁷ DTI, [Work and Families Consultation: Government Response](#), October 2005, p43, para 5.28

employees to apply for flexible working in order to care for a person age 18 or over who fell within a description set by regulations.²⁸

Walsh Review and consultation, 2007-9

In 2008 the government published a consultation on extending the right to request flexible working to the parents of older children.²⁹ This consultation was published in response to recommendations made by the Walsh review, an independent review led by Imelda Walsh, the Director of Human Resources at J Sainsbury plc.³⁰ The consultation response was published in March 2009,³¹ and confirmed the government's intention to extend the right to those with parental responsibility for children under 17.³²

This extension came into effect on 6 April 2009 through the [Flexible Working \(Eligibility, Complaints and Remedies\) \(Amendment\) Regulations 2009](#).³³ They amended regulation 3A of the [Flexible Working \(Eligibility, Complaints and Remedies\) Regulations 2002](#).³⁴

The Walsh Review also considered whether the right should be extended to all employees. The review concluded that rather than extending the right to all employees, employers should be encouraged to consider including all employees when looking at flexible working arrangements.”³⁵

Equality and Human Rights Commission proposals

On 30 March 2009 the Equality and Human Rights Commission (EHRC) published a report, [Working Better](#) [PDF], which made recommendations for changes to the flexible working and parental leave regimes.³⁶

²⁸ The [Flexible Working \(Eligibility, Complaints and Remedies\) \(Amendment\) Regulations 2006](#) SI 2006/3314 came into force on 6 April 2007. They amended the [Flexible Working \(Eligibility, Complaints and Remedies\) Regulations 2002](#) SI 2002/3236 to cover employees who care for dependant adults.

²⁹ Department for Business Enterprise & Regulatory Reform, [Consultation on implementing the recommendations of Imelda Walsh's Independent Review](#), [PDF] August 2008

³⁰ Department for Business Enterprise & Regulatory Reform, [A review of how to extend the right to request flexible working to parents of older children](#), [PDF] May 2008, p19

³¹ BERR, [Extending the right to request flexible working to parents of older children: Government response to consultation on implementing the recommendations of Imelda Walsh's independent review](#), March 2009

³² BERR, [Extending the right to request flexible working to parents of older children: Government response to consultation on implementing the recommendations of Imelda Walsh's independent review](#), March 2009, p4; [HC Deb 17 December 2008, c1095](#)

³³ [Flexible Working \(Eligibility, Complaints and Remedies\) \(Amendment\) Regulations 2009](#) SI 2009/595

³⁴ [Flexible Working \(Eligibility, Complaints and Remedies\) Regulations 2002](#) SI 2002/3236

³⁵ Department for Business Enterprise & Regulatory Reform, [A review of how to extend the right to request flexible working to parents of older children](#), [PDF] May 2008, p8

³⁶ Equality and Human Rights Commission, [Working Better: Meeting the changing needs of families, workers and employers in the 21st century](#), [PDF] 30 March 2009

In regard to flexible working, EHRC research found that general awareness of the right to request a flexible working pattern among parents was low.³⁷ It also found that flexibility was still perceived, widely but incorrectly, as the preserve of mothers of young children.³⁸ The report said that UK legislation was limited because it did not provide for a return to full-time work after a period of reduced hours.

The report made a number of recommendations, which included extending the right to request flexible working to all employees, introducing a formal right to request a return to a full-time working pattern, and removing the 26 weeks eligibility criteria for right to request.³⁹

3.2

Coalition Government policy, 2010-15

In the 2010 General Election manifesto, the Conservative Party pledged to extend the right to request flexible working to all parents with children under the age of 18, and to consider extending the right to all employees.⁴⁰ The Liberal Democrats' 2010 manifesto pledged to extend the right to all employees.⁴¹ The Coalition Agreement contained a commitment to "extend the right to request flexible working to all employees, consulting with business on how best to do so."⁴²

Regulations to extend the right to parents with children under the age of 18, 2010

In September 2010 the Coalition Government announced plans – as an interim step, prior to an extension to all employees – to extend the right to request flexible working to all parents of children under the age of 18.⁴³ This was due to be implemented by the [Flexible Working \(Eligibility, Complaints and Remedies\) \(Amendment\) Regulations 2010](#).⁴⁴ However, the government repealed the Regulations before they came into force, citing their belief that the regulations could become 'an unhelpful complication' at a time when 'employers need to focus on growth and creating jobs.'⁴⁵

In the accompanying press release, the government recommitted to extending the right to request flexible working to all employees in due course

³⁷ Equality and Human Rights Commission, [Working Better](#), 30 March 2009, p62

³⁸ As above, p52

³⁹ As above, p63

⁴⁰ Conservative Party, [Invitation to Join the Government of Britain: The Conservative Manifesto 2010](#), [PDF], p42

⁴¹ Liberal Democrats, [Manifesto 2010](#), p30

⁴² HM Government, [The Coalition: our programme for government](#), [PDF] May 2010, p18

⁴³ Department for Business, Innovation & Skills, [Family friendly working – next steps](#), BIS website, 1 October 2010 (accessed on 15 July 2024)

⁴⁴ [The Flexible Working \(Eligibility, Complaints and Remedies\) \(Amendment\) Regulations 2010](#) SI 2010/2991

⁴⁵ [HC Deb 18 March 2011, c31WS](#)

and explained that “the aim behind delaying the extension of flexible working is to allow businesses breathing space in the current economic climate.”⁴⁶

Children and Families Act 2014

The government’s commitment to extend the right to all employees was taken forward by the Children and Families Act 2014.

On 30 June 2014, Part 9 of the Children and Families Act 2014 amended the law on flexible working requests to extend the right to all employees with 26 weeks’ continuous employment.⁴⁷ It also removed previous procedural requirements for employers’ responses, replacing these with a duty to deal with the application in a reasonable manner.

Prior to publication of the Children and Families Bill, the government consulted on changes to flexible working as part of the Modern Workplaces consultation.

Modern Workplaces consultation

The Modern Workplaces consultation document presented the government’s case for change:

Through the right to request flexible working, many parents and carers have already benefited from flexibility in balancing their personal and working lives. Extending this right and encouraging flexible working generally will give all employees the opportunity to contribute more widely to society, whether as carers, disabled people, volunteers, or simply as citizens. It will also help employers to recruit, motivate and retain their workforces, and so build successful businesses as well as increasing productivity. By responsibly negotiating working patterns that suit the needs of both parties, businesses can access a labour pool of experienced and skilled staff, who in turn will be able to find work that fits around their other commitments.⁴⁸

The document highlighted research undertaken by Industrial Relations Services which indicated wide support for flexible working amongst human resources professionals.⁴⁹

The consultation document set out the government’s intention to:

- extend to all employees the statutory right to request flexible working;

⁴⁶ Department for Business, Innovation & Skills, [Vince Cable bins business red tape](#), 18 Mar 2011; and BIS press release, [Government bins business red tape](#), 18 March 2011

⁴⁷ [Children and Families Act 2014](#), pt 9

⁴⁸ Department for Business, Innovation & Skills, [Consultation on Modern Workplaces: flexible parental leave, flexible working, Working Time Regulations, equal pay](#), May 2011, p2

⁴⁹ Department for Business, Innovation & Skills, [Consultation on Modern Workplaces: flexible parental leave, flexible working, Working Time Regulations, equal pay](#), May 2011, p33; Brightmine, [IRS flexible working survey 2010: take-up and employee requests](#), (accessed 12 June 2024)

- reduce the administrative burden of considering such requests by replacing the statutory process for considering requests with a requirement that employers give “reasonable” consideration to requests;
- introduce a statutory Code of Practice to provide guidance on what consideration is likely to meet the requirement of reasonableness⁵⁰

The government planned to leave unchanged the grounds on which a request can lawfully be refused and the 26-week qualifying period for the statutory right.

For more information on the government’s proposals, see the Modern Workplaces [consultation document](#) and [impact assessment](#) [PDF].

Consultation response

The consultation response was published on 13 November 2012 and confirmed the government’s intention to bring forward legislation to extend to all employees the right to request flexible working, and to replace the statutory procedure for considering requests.⁵¹

The Children and Families Bill

The Children and Families Bill, introduced to Parliament on 4 February 2013, carried forward the proposals from the Modern Workplaces consultation. The Bill intended to extend to all qualifying employees the right to request flexible working, and to replace the statutory procedure for dealing with requests with a requirement to deal ‘reasonably’ with them, supported by a new statutory Acas Code of Practice.

At Second Reading, the Education Minister, Edward Timpson, said that the extension would “help widen the pool of talent in the labour market, helping to drive growth.”⁵²

Members who spoke at Second Reading were supportive of the extension, although some voiced scepticism over the replacement of the statutory procedure.⁵³ The Bill’s flexible working proposals were supported during the rest of the Bill’s passage through Parliament. Amendments were debated, albeit not agreed to, that would have extended further the right by removing the 26-week qualifying period and increased employment tribunals’ powers when considering claims in relation to refused requests.⁵⁴

⁵⁰ Department for Business, Innovation & Skills, [Consultation on Modern Workplaces: flexible parental leave, flexible working, Working Time Regulations, equal pay](#), May 2011, pp36-44

⁵¹ Department for Business, Innovation & Skills, [Consultation on Modern Workplaces – Extending the right to request flexible working to all: Impact assessment](#), May 2011, pp21-22

⁵² [HC Deb 25 February 2013 c49](#)

⁵³ [HC Deb 25 February 2013 c91](#)

⁵⁴ For further information see Commons Library briefing paper RP13/32, [Children and Families Bill Committee Stage Report](#), 31 May 2013

The Bill received Royal Assent on 13 March 2014 and the provisions for flexible working requests took effect from 30 June 2014.⁵⁵

3.3

Policy and discussion under the Conservative Government, 2015-2024

Women and Equalities Committee Gender Pay Gap Inquiry

On 22 March 2016 the Women and Equalities Select Committee published a report following its inquiry into the gender pay gap.⁵⁶ Chapter 4 of the report considered the case for flexible working, noting:

There is clear evidence flexible working benefits the UK economy and individual employers. However, a culture of presenteeism and a lack of creative thinking about job design are hampering progress towards flexibility as the norm. Too few employers are considering the benefits of offering jobs as open to flexible working.⁵⁷

In light of their findings, the committee recommended:

- All jobs should be available to work flexibly unless an employer can demonstrate an immediate and continuing business case against doing so.
- The right to request flexible working should be amended to allow those working less than full-time hours to request the opportunity to work more.
- The Department for Business Industry and Skills should facilitate a campaign outlining the benefits of flexible working and flexible hiring, sharing best practice within sectors.⁵⁸

Government response

The government responded on 21 February 2017 to the Committee's report.⁵⁹ Regarding the recommendation that all jobs should be available to work flexibly, the government stated that they were committed to promoting the

⁵⁵ [Children and Families Act 2014](#), s 134

⁵⁶ Women and Equalities Committee, [Gender Pay Gap: Second Report of Session 2015–16](#), [PDF] 22 March 2016, HC 584 2015-16

⁵⁷ Women and Equalities Committee, [Gender Pay Gap: Second Report of Session 2015–16](#), [PDF] 22 March 2016, HC 584 2015-16, para 131

⁵⁸ Women and Equalities Committee, [Gender Pay Gap: Second Report of Session 2015–16](#), [PDF] 22 March 2016, HC 584 2015-16, paras 134 - 135

⁵⁹ Women and Equalities Committee, [Gender Pay Gap: Government Response to the Committee's Second Report of Session 2015–16, Third Special Report of Session 2016–17](#), [PDF] 21 February 2017, HC 963, 2016-17

business benefits of flexible working but recognised that individual employers were best placed to decide whether this arrangement suited their organisation:

The statutory Right to Request Flexible Working, which was extended to all employees with 26 weeks' continuous service in June 2014, enables employees to agree a working pattern which suits them and their employer and better balance work with other commitments.

The Government is committed to working with business and other groups to promote the business benefits of flexible working. We want to see as many jobs as possible offered in this way and while we recognise the need to increase communications activity around flexible working, we believe that individual employers are best placed to decide what types of working arrangements their business can accommodate [...]⁶⁰

On the issue of amending the right to request flexible working to allow employees to request to work more hours if they are not already working full-time, the response pointed out that the existing law already allowed for this.⁶¹

Taylor Review, 2016-17

On 1 October 2016 the Prime Minister commissioned Matthew Taylor, Chief Executive of the Royal Society for the encouragement of Arts, Manufactures and Commerce (RSA), to assess the implications for employment regulation of new forms of work, driven by digital platforms.

The Independent Review of Employment Practices in the Modern Economy launched on 30 November 2016.⁶² The subsequent report, titled [Good Work: the Taylor Review of modern working practices](#), was published on 11 July 2017.

Taylor Review findings

Whilst the report mainly focused on employment status law,⁶³ it also examined flexible working policy. The report found:

- There had been a shift towards flexible working: The report found there had 'clearly been a significant move' towards flexible working over the last 10 years. 92% of employers said that they had at least one form of flexible working practice available in their workplace, and 60% of

⁶⁰ Women and Equalities Committee, [Gender Pay Gap: Government Response to the Committee's Second Report of Session 2015–16, Third Special Report of Session 2016–17](#), [PDF] 21 February 2017, HC 963, 2016-17, p6

⁶¹ Women and Equalities Committee, [Gender Pay Gap: Government Response to the Committee's Second Report of Session 2015–16, Third Special Report of Session 2016–17](#), [PDF] 21 February 2017, HC 963, 2016-17, p6

⁶² Department for Business, Energy & Industrial Strategy press release, [Taylor review on modern employment practices launches](#), 30 November 2016. GOV.UK, [Employment Practices in the Modern Economy](#), (accessed 13 June 2024)

⁶³ For more information, see Commons Library research briefing CBP-8045, [Employment status](#), 28 March 2018

employees said they had completed some form of flexible working in the last 12 months.⁶⁴

- Flexible working prevents people from involuntarily leaving the labour market: Flexible working can help people to remain in the labour market who may otherwise be forced to stop work. Periods of involuntary leave from the labour market can significantly affect an individual's future employment outcomes, and this effect becomes greater for longer periods of absence. This especially affects certain groups, such as women and disabled people. Disabled people were twice as likely to be unemployed, after an absence of a year, than those without a disability. For women, the impact of maternity leave is evidenced through the gender pay gap.⁶⁵
- Work life balance: 75% of the self-employed said that they were satisfied with the flexibility to set their own schedule around other commitments in their life.
- There are concerns about 'gig working' leading to income insecurity: The review found that 'gig working' could lead to concerns about income insecurity, however the review stated that they did not see "flexibility as incompatible with ensuring that more atypical workers have access to employment and social security protections."⁶⁶
- Technology can and should be used to support flexible working practices: The review suggested that employers should use technology to determine which activities can be completed in line with flexible working practices
- More needs to be done to encourage thinking around flexible working at an early stage: The review advised that there is "further to go in encouraging this kind of thinking at an early stage."⁶⁷ Whilst some work between employers and government had led to the "happy to talk flexible working" strapline, still too few jobs were advertised as being available to people who may wish to work flexibly.⁶⁸

The review ultimately recommended that the government should use the forthcoming statutory evaluation of the right to request flexible working as an opportunity to consider how to further promote flexible working practices:

⁶⁴ Department for Business and Trade and Department for Business, Energy & Industrial Strategy, [Good Work: the Taylor Review of modern working practices](#), 11 July 2017, p94; The data is taken from Office for National Statistics, [UK labour market: April 2017](#), 12 April 2017

⁶⁵ Department for Business and Trade and Department for Business, Energy & Industrial Strategy, [Good Work: the Taylor Review of modern working practices](#), 11 July 2017, p95

⁶⁶ Department for Business and Trade and Department for Business, Energy & Industrial Strategy, [Good Work: the Taylor Review of modern working practices](#), 11 July 2017, p95

⁶⁷ Department for Business and Trade and Department for Business, Energy & Industrial Strategy, [Good Work: the Taylor Review of modern working practices](#), 11 July 2017, p95

⁶⁸ Department for Business and Trade and Department for Business, Energy & Industrial Strategy, [Good Work: the Taylor Review of modern working practices](#), 11 July 2017, pp94-95

As part of the statutory evaluation of the Right to Request Flexible Working in 2019, Government should consider how further to promote genuine flexibility in the workplace. For example it should consider whether temporary changes to contracts might be allowed, to accommodate flexibility needed for a particular caring requirement. Government should work closely with organisations like Timewise and Working Families to encourage flexible working and initiatives like “happy to talk flexible working” to a wider range of employers.⁶⁹

The statutory evaluation refers to the requirement in section 134 of the Children and Families Act 2014 to review the extension of flexible working to all employees.⁷⁰

Government response to the Taylor Review, 2018

In February 2018, the government published [its response](#) to the Taylor Review, and also launched four consultations:

- [Agency workers](#)
- [Employment status](#)
- [Enforcement of employment rights](#)
- [Increasing transparency in the labour market](#)

The government published an individual response to the Employment status consultation.⁷¹ Responses to the other three consultations were combined in the Good Work Plan.

Good work Plan

In December 2018, the government published the [Good Work Plan](#), which set out how it intended to implement the recommendations made in the Taylor Review.

The government agreed with the recommendations relating to flexible working and stated that as part of the evaluation process in 2019, it would consider how to further promote flexibility in the workplace.⁷² The government set up a taskforce to work with business which included organisations such as Carers UK, Working Families, Timewise and the TUC.⁷³

⁶⁹ Department for Business and Trade and Department for Business, Energy & Industrial Strategy, [Good Work: the Taylor Review of modern working practices](#), 11 July 2017, p95

⁷⁰ [Children and Families Act 2014](#), s 134

⁷¹ [Consultation outcome: Employment status](#), 26 July 2022

⁷² Department for Business and Trade and Department for Business, Energy & Industrial Strategy, Employment Agency Standards Inspectorate, [Good work: a response to the Taylor Review of modern working practices](#), 21 December 2018

⁷³ HM Government, [Good Work Plan](#), [PDF] December 2018, p55

The government also committed to consider requiring all jobs to be advertised as flexible from day one, provided there were no solid business reasons not to.⁷⁴

Employment Bill 2019

In the December 2019 Queen's Speech, the government committed to introducing an Employment Bill.⁷⁵ The proposed bill included a commitment to make flexible working the default, subject to consultation, unless there were good business reasons preventing it.⁷⁶

This Employment Bill was not introduced during the 2019-2024 Parliament.

Consultation: Making flexible working the default, 2021

The government issued a consultation on flexible working in September 2021, including a proposal to make the right to request flexible working a day one right.⁷⁷ The consultation closed on 1 December 2021.

Prior to the government publishing the consultation response, the Employment Relations (Flexible Working) Bill was introduced to Parliament by Yasmin Qureshi MP.⁷⁸

On 5 December 2022, following the second reading of the bill, the government published their response to the consultation. In their response, they pledged to make flexible working a day one right, along with four other commitments that matched the measures contained in the bill:

- require employers to consult with their employees, as a means of exploring the available options, before rejecting their flexible request;
- allow employees to make two flexible working requests in any 12-month period and requiring employers to respond to requests within two months
- require a decision period of 2 months in respect of a statutory flexible working request (rather than the current three)
- remove the requirement for employees to set out how the effects of their flexible working request might be dealt with by the employer.⁷⁹

⁷⁴ As above

⁷⁵ HM Government, [Queen's Speech 2019](#), December 2019, p43

⁷⁶ As above

⁷⁷ BEIS, [Making flexible working the default](#), 23 September 2021

⁷⁸ As above

⁷⁹ BEIS, [Consultation on Making Flexible Working the Default: Government Response](#), [PDF5 December 2022, p20

Employment Relations (Flexible Working) Bill, 2022

The purpose of the Employment Relations (Flexible Working) Bill was to amend the Employment Rights Act 1996 to change the current right to request flexible working in the following ways:

- removing the requirement for employees to explain in their applications what effect they think it will have on the employer,
- allowing employees to make two flexible working requests per 12 months instead of the one currently allowed,
- requiring employers to consult with the employee before being allowed to refuse an application, and
- reducing the deadline for an employer decision on flexible working requests from three months to two months.

The Bill applied to England, Scotland and Wales but not Northern Ireland where employment law is a devolved matter.⁸⁰

The Bill gained cross-party support, including from the government, and received Royal Assent on 20 July 2023.⁸¹

The Flexible Working (Amendment) Regulations 2023

The Flexible Working Regulations enable employees to make such requests from their first day of employment, by removing the 26-week qualifying period.⁸²

The changes to employment law from the above Act and accompanying regulations came into force on 6 April 2024.

⁸⁰ For more information, see Commons Library research briefing CBP-9648, [Employment Relations \(Flexible Working\) Bill 2022-23: Progress of the Bill](#)

⁸¹ [Employment Relations \(Flexible Working\) Act 2023, HC Deb 29 June 2023, vol 735](#)

⁸² [The Flexible Working \(Amendment\) Regulations 2023](#)

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